DRAFT v1 — PENDING LEGAL APPROVAL (pendiente de aprobación legal)

Terms of Service

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These Terms of Service (the "Terms") govern your access to and use of the Lixtara website, applications, and services (collectively, the "Services"). Lixtara is an online platform that combines for-sale-by-owner (FSBO) tools with licensed-broker support to help property owners in Florida list, market, and sell their homes. Lixtara is operated by Lixtara LLC ("Lixtara," "we," "us," or "our"), based in Miami, Florida, United States.

Please read these Terms carefully. By accessing or using the Services, creating an account, starting a listing, or signing any agreement through the Services, you agree to be bound by these Terms. If you do not agree, do not use the Services. These Terms include important provisions that affect your legal rights, including disclaimers of warranties, a limitation of liability, an indemnification obligation, and provisions regarding dispute resolution and arbitration.

1. Acceptance of Terms

By accessing or using the Services in any way, you acknowledge that you have read, understood, and agree to be bound by these Terms and by our Privacy Policy, which is incorporated by reference. These Terms form a binding agreement between you and Lixtara.

If you use the Services on behalf of a company, trust, estate, or other legal entity, you represent that you have authority to bind that entity to these Terms, and "you" refers to both you individually and that entity.

We may publish additional terms, policies, or guidelines for specific features (for example, listing agreements, add-on services, or payment terms). If these Terms conflict with a listing agreement, buyer agreement, or any other brokerage agreement you sign with Lixtara LLC, that agreement controls.

2. Eligibility

You must be at least 18 years of age and have the legal capacity to enter into a binding contract to use the Services. By using the Services, you represent and warrant that you meet these requirements.

The Services are intended for users located in the United States, and they are designed specifically for residential real property located in the State of Florida. We do not represent that the Services are appropriate or available for use outside of this focus, and you are responsible for compliance with any laws that apply to you.

You may not use the Services if you are barred from doing so under applicable law or if your access has previously been suspended or terminated by us.

3. Description of the Services

Lixtara provides an online platform that gives sellers FSBO-style tools to create and manage a property listing, combined with support from a real estate brokerage. Through the Services you can, among other things, build a listing, upload photos and property details, choose a plan, offer compensation to the buyer's agent, order optional add-ons, sign documents electronically, and have your listing marketed and syndicated to third-party real estate portals.

When your listing is published through our brokerage, it is entered in the multiple listing service (MLS) and may be syndicated from there to third-party portals including Zillow, Realtor.com, Redfin, and Trulia. Availability, format, and timing on the MLS and on any third-party portal are governed by the MLS rules or by that portal and are not guaranteed by Lixtara.

Lixtara is a technology platform and a licensed Florida real estate brokerage (Florida license CQ1075352). Lixtara is not a law firm, lender or mortgage broker, title or escrow company, appraiser, home inspector, surveyor, accountant, or tax advisor, and nothing in the Services constitutes legal, financial, tax, appraisal, or investment advice.

- We do not provide legal advice or prepare legal documents for you as your attorney; you are responsible for obtaining your own legal counsel where appropriate.
- We do not lend money, originate mortgages, or provide financing.
- We do not perform appraisals, inspections, or surveys, and any valuation, estimate, or market data shown through the Services is informational only.
- We do not provide accounting or tax advice, and you are responsible for your own tax obligations arising from any transaction.
- We do not guarantee that any property will sell, or that it will sell at any particular price or within any particular timeframe.

4. Brokerage Relationship and Florida Real Estate Disclosures

Lixtara operates as a licensed Florida real estate brokerage (Florida license CQ1075352). Our principal broker of record, Anamaria Velasquez, oversees the brokerage activities conducted through the Services in accordance with Florida real estate law.

The specific brokerage relationship between you and Lixtara (including the nature, scope, and duties of that relationship) is established and governed by the listing agreement and any related disclosures that you sign. These Terms do not by themselves create a brokerage, agency, or fiduciary relationship. Any agency or representation obligations arise only under, and are limited by, the signed listing agreement and applicable Florida real estate law and disclosure requirements.

Lixtara does not guarantee any result. We make no promise or guarantee that your property will sell, that it will attract any offer, or that any sale will close at a particular price, on particular terms, or within any particular period of time. Real estate outcomes depend on many factors outside our control, including market conditions, pricing, property condition, and buyer behavior.

Fair Housing. Lixtara is committed to the principles of equal housing opportunity. You agree that your listing and your conduct through the Services will comply with the federal Fair Housing Act and the Florida Fair Housing Act and all other applicable anti-discrimination laws. You may not discriminate,

or state any preference, limitation, or discrimination, on the basis of race, color, religion, sex, disability, familial status, national origin, or any other protected class.

- You are responsible for the accuracy and completeness of all information about your property, including required disclosures of known material defects.
- You are responsible for complying with all applicable laws relating to the sale of your property, including disclosure obligations under Florida law.
- You are responsible for deciding the listing price and the terms on which you are willing to sell.
- You are responsible for cooperating in good faith with the brokerage services described in your signed listing agreement.

4.1 Buyer's Agent Compensation

Buyer's agent compensation is separate from the Lixtara commission, and 0% is allowed. Lixtara will communicate and document offers of compensation to a buyer's broker of up to 3% of the purchase price, as directed by the seller. The seller may agree to pay a higher amount directly with the buyer's broker; Lixtara will not prevent or discourage it. Compensation is negotiable, not set by law, and never published on the MLS.

5. Accounts and Registration

You may begin building a listing without first creating an account. Before you sign any agreement or complete certain steps, you will be asked to create an account.

When you create an account, you agree to provide accurate, current, and complete information and to keep it updated. You are responsible for maintaining the confidentiality of your login credentials and for all activity that occurs under your account. You agree to notify us promptly at support@lixtara.com of any unauthorized use of your account or any other breach of security.

You may maintain only one account per person unless we expressly authorize otherwise. You may not share your account, impersonate another person, or create an account using false information. We may refuse, suspend, or terminate accounts at our discretion in accordance with these Terms.

6. Plans, Fees, Commissions, and Payments

Lixtara offers three plans. Each plan consists of a flat, one-time fee plus a low seller-side commission that becomes payable only if and when your property sells. Each plan carries a listing term of 24 months.

The plan tiers are: Essentials: $199 flat fee plus a 0.5% seller-side commission on sale; Pro: $495 flat fee plus a 1% seller-side commission on sale; and Concierge: $995 flat fee plus a 1.5% seller-side commission on sale. The flat fee for each plan is one-time. The seller-side commission is owed only if the property sells. Buyer's agent compensation (Section 4.1) is separate from these amounts and is your decision; it can be 0%.

The flat fee is charged whether or not your home sells. The flat fee is non-refundable once your property is published on the MLS. You get a full refund if the broker doesn't approve your listing or it can't be published, if you were charged twice or because of a technical error, or if you cancel before it's published.

Optional add-ons, such as professional photography and AI virtual staging, may be available for an additional charge that will be disclosed to you before you purchase them. Add-on fees are non-refundable except where required by law.

Payments are processed through our third-party payment processor, Stripe. By submitting payment information, you authorize us and Stripe to charge the applicable amounts. Lixtara does not store your full card number; payment card data is handled by Stripe under its terms. You are responsible for any taxes that apply to your purchase, other than taxes on Lixtara's net income.

6.1 Listing Term

Your listing term runs for 24 months from the start of your listing, unless terminated earlier in accordance with your signed listing agreement and these Terms. The seller-side commission for your plan applies to a qualifying sale of the property as set out in your listing agreement.

7. Listing Content and Seller Responsibilities

You are solely responsible for the content you provide, including property descriptions, prices, terms, photographs, videos, and any other materials (collectively, "Listing Content"). You represent and warrant that all Listing Content is accurate and not misleading, and that you will promptly correct any information that becomes inaccurate.

You represent and warrant that you own, or have all necessary rights and permissions to use and to authorize us to use, all Listing Content, including all photographs and other media. You may not submit any content that infringes or misappropriates the copyright, trademark, privacy, publicity, or other intellectual property or proprietary rights of any third party.

You agree that your listing will be lawful and non-discriminatory and will comply with all applicable laws, including fair housing and anti-discrimination laws and Florida disclosure requirements.

You grant Lixtara a worldwide, non-exclusive, royalty-free license to host, store, reproduce, adapt (including resizing and reformatting), publish, display, distribute, and syndicate your Listing Content for the purpose of operating, marketing, and providing the Services, including submitting your listing to the MLS and syndicating it to third-party portals such as Zillow, Realtor.com, Redfin, and Trulia. This license continues for as long as needed to provide the Services and to comply with our legal obligations, and it survives to the extent third-party portals retain copies outside our control.

8. AI Features and Generated Content

The Services include artificial-intelligence features. "Loui" is an AI chat assistant that provides general, informational responses only. Loui does not provide legal, financial, tax, appraisal, or other professional advice, and you should not rely on it as a substitute for advice from a qualified professional. AI responses may be inaccurate, incomplete, or out of date.

The Services also offer AI virtual staging and "Living Listing" AI motion video, as well as optional 3D tours. AI-generated and AI-enhanced images and videos are illustrative only and are clearly labeled. They are created to help visualize possibilities and do not depict the actual current condition, furnishings, or finishes of the property. They are not a representation, warranty, or guarantee of the property's condition.

You should not rely on AI-generated or AI-enhanced media as an accurate depiction of a property. Original, unaltered photographs are available on request. Buyers and other users are encouraged to independently verify a property's condition before making any decision.

9. Third-Party Services

The Services rely on, integrate with, or link to third-party products and services. These include, among others, Supabase, Stripe, DocuSign, Resend, Mapbox, Google Maps, Rentcast, the Miami-Dade County Property Appraiser, Anthropic, Luma, Upstash, and Vercel, as well as the real estate portals to which listings may be syndicated.

Your use of any third-party service is subject to that third party's own terms and privacy policies, and you are responsible for reviewing and complying with them. Lixtara does not control and is not responsible for third-party services, including their availability, accuracy, security, or content. Maps, property data, valuations, and similar information sourced from third parties are provided for convenience and may be inaccurate or incomplete.

10. Intellectual Property

The Services, including the Lixtara platform, software, design, text, graphics, logos, trademarks, and all other materials we provide (excluding your Listing Content), are owned by Lixtara or its licensors and are protected by intellectual property and other laws. The "Lixtara" name and logo are our marks; you may not use them without our prior written permission.

Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable, revocable license to access and use the Services for their intended purpose. You may not copy, modify, distribute, sell, lease, reverse engineer, or create derivative works from any part of the Services except as permitted by law or with our written consent.

As described in Section 7, you grant Lixtara a license to use your Listing Content to operate and provide the Services. You retain ownership of your Listing Content, subject to that license.

11. Prohibited Conduct

You agree not to misuse the Services. In particular, you agree that you will not:

- Violate any applicable law or regulation, or use the Services for any unlawful, fraudulent, or deceptive purpose;
- Post any listing or content that is false, misleading, infringing, defamatory, discriminatory, or otherwise unlawful;
- Submit a listing for a property you do not own or are not authorized to list, or list a property you do not genuinely intend to sell;
- Infringe or misappropriate any intellectual property, privacy, publicity, or other rights of any person;
- Attempt to gain unauthorized access to any account, system, or data, or interfere with or disrupt the integrity or performance of the Services;

- Introduce viruses, malware, or other harmful code, or use bots, scrapers, or automated means to access or collect data from the Services without our permission;
- Circumvent, disable, or interfere with any security feature or rate limiting of the Services;
- Use the Services to harass, abuse, or harm another person, or to send spam or unsolicited communications;
- Misuse the AI features, including attempting to generate unlawful, infringing, or deceptive content; or
- Resell, sublicense, or commercially exploit the Services except as expressly permitted by us.

12. Electronic Communications, Records, and Signatures

By using the Services, you consent to receive communications from us electronically, including by email and through the Services. You agree that electronic communications, notices, agreements, and disclosures we provide satisfy any legal requirement that such communications be in writing.

Agreements offered through the Services, including listing agreements, are signed electronically through DocuSign. By signing electronically, you consent to the use of electronic records and electronic signatures, and you agree that your electronic signature is the legal equivalent of your handwritten signature and is binding. This consent is given under the federal ESIGN Act and Florida's Uniform Electronic Transaction Act.

You may withdraw your consent to transact electronically or request a paper copy of a record by contacting us at support@lixtara.com; however, doing so may prevent us from providing certain Services to you. You are responsible for maintaining hardware, software, and internet access capable of receiving and reviewing electronic records.

13. Disclaimers of Warranties

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, OR STATUTORY. TO THE FULLEST EXTENT PERMITTED BY LAW, LIXTARA DISCLAIMS ALL WARRANTIES, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING OR USAGE OF TRADE.

We do not warrant that the Services will be uninterrupted, secure, error-free, or free of harmful components, or that any defects will be corrected. We do not warrant the accuracy, completeness, or reliability of any content, property data, valuations, AI-generated output, or third-party information made available through the Services.

Lixtara makes no guarantee regarding the results of using the Services, including any guarantee that your property will sell, that it will sell at any particular price, or that it will sell within any particular timeframe. Some jurisdictions do not allow the exclusion of certain warranties, so some of the above exclusions may not apply to you.

14. Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY LAW, LIXTARA AND ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AND LICENSORS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR BUSINESS OPPORTUNITY, ARISING OUT OF OR RELATING TO YOUR USE OF, OR INABILITY TO USE, THE SERVICES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

TO THE FULLEST EXTENT PERMITTED BY LAW, THE TOTAL AGGREGATE LIABILITY OF LIXTARA ARISING OUT OF OR RELATING TO THE SERVICES AND THESE TERMS WILL NOT EXCEED THE GREATER OF (A) THE TOTAL AMOUNT OF FEES YOU PAID TO LIXTARA FOR THE SERVICES IN THE TWELVE MONTHS BEFORE THE EVENT GIVING RISE TO THE LIABILITY, OR (B) ONE HUNDRED U.S. DOLLARS ($100).

These limitations apply regardless of the legal theory on which a claim is based and are an essential basis of the bargain between you and Lixtara. Some jurisdictions do not allow the limitation or exclusion of certain damages, so some of the above limitations may not apply to you.

15. Indemnification

You agree to indemnify, defend, and hold harmless Lixtara and its officers, directors, employees, agents, and licensors from and against any claims, demands, losses, liabilities, damages, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) your use of the Services; (b) your Listing Content; (c) your breach of these Terms or of any signed agreement; (d) your violation of any law or of the rights of any third party, including fair housing, intellectual property, or privacy rights; or (e) any transaction or dispute between you and a buyer, seller, agent, or other third party.

We reserve the right, at our own expense, to assume the exclusive defense and control of any matter otherwise subject to indemnification by you, in which case you agree to cooperate with our defense of that claim.

16. Term and Termination

These Terms apply while you use the Services. You may stop using the Services at any time. You may close your account by contacting us at support@lixtara.com, subject to any obligations that survive under a signed listing agreement, including a 24-month listing term and any commission obligations.

We may suspend or terminate your access to the Services, in whole or in part, at any time if we reasonably believe you have violated these Terms or applicable law, if needed to protect the Services or other users, or as otherwise permitted by law. Where reasonable and lawful, we will provide notice.

Termination of your account does not by itself terminate a signed listing agreement, which is governed by its own terms. Sections of these Terms that by their nature should survive termination (including provisions on fees already incurred, intellectual property, disclaimers, limitation of liability, indemnification, dispute resolution, and governing law) will survive.

17. Dispute Resolution; Arbitration; Class Action Waiver

(a) Except for Excluded Claims, you and Lixtara LLC agree that any dispute arising out of or relating to these Terms or your use of the Site will be resolved by binding individual arbitration administered by the American Arbitration Association under its Consumer Arbitration Rules. The Federal Arbitration Act governs this Section.

(b) Excluded Claims: (i) individual claims within the jurisdiction of a small claims court; (ii) disputes arising under a listing agreement, buyer agreement or other brokerage agreement, which are governed by that agreement; (iii) complaints to the Florida Department of Business and Professional Regulation, the Florida Real Estate Commission or any other government agency.

(c) Claims may be brought only in an individual capacity, not as a plaintiff or class member in any class, collective or representative proceeding.

(d) You may opt out of this Section within thirty (30) days after you first accept these Terms by emailing legal@lixtara.com with your name and a statement that you opt out of arbitration.

(e) If the class action waiver is found unenforceable as to any claim, that claim will proceed in the state or federal courts located in Miami-Dade County, Florida.

(f) These Terms are governed by Florida law, except that the Federal Arbitration Act governs this Section.

18. Governing Law and Venue

These Terms and any dispute arising out of or relating to them or the Services are governed by the laws of the State of Florida, without regard to its conflict-of-laws principles, and by applicable U.S. federal law.

Subject to the arbitration provisions in Section 17, you agree that any claim or dispute that proceeds in court will be brought exclusively in the state or federal courts located in Miami-Dade County, Florida, and you consent to the personal jurisdiction and venue of those courts.

19. Changes to These Terms

We may update these Terms from time to time. When we make changes, we will revise the "last updated" date and, where appropriate, provide additional notice through the Services or by email. Changes are effective when posted unless otherwise stated.

Your continued use of the Services after the updated Terms take effect constitutes your acceptance of the changes. If you do not agree to the updated Terms, you must stop using the Services. Changes do not retroactively alter the terms of any agreement you have already signed, which remains governed by its own terms.

20. Miscellaneous

Severability. If any provision of these Terms is held invalid or unenforceable, that provision will be limited or removed to the minimum extent necessary, and the remaining provisions will remain in full force and effect.

Entire Agreement. These Terms, together with the Privacy Policy and any agreements you sign through the Services, constitute the entire agreement between you and Lixtara regarding the Services and supersede any prior agreements on that subject. If these Terms conflict with an agreement you sign with Lixtara LLC, Section 1 explains which controls.

No Waiver. Our failure to enforce any provision of these Terms is not a waiver of that provision or of our right to enforce it later.

Assignment. You may not assign or transfer these Terms without our prior written consent. We may assign these Terms in connection with a merger, acquisition, reorganization, or sale of assets, or by operation of law.

Force Majeure. Lixtara is not liable for any delay or failure to perform caused by events beyond our reasonable control, including acts of God, natural disasters, severe weather, war, terrorism, civil unrest, labor disputes, governmental actions, utility or internet failures, or failures of third-party service providers.

Relationship of the Parties. Nothing in these Terms creates any partnership, joint venture, or employment relationship between you and Lixtara, except for any brokerage relationship expressly established by a signed listing agreement.

21. Contact Us

If you have questions about these Terms or the Services, please contact us:

Lixtara LLC, 181 Vera Ct, Miami, FL 33143, United States.

Legal: legal@lixtara.com. Formal notices to Lixtara LLC: notices@lixtara.com. Support: support@lixtara.com.

Licensed Florida real estate brokerage. Brokerage license number: CQ1075352. Principal broker of record: Anamaria Velasquez (license BK3664191).

Legal services disclosure (shown below the Terms on the site)

Lixtara LLC is a licensed real estate brokerage, not a law firm, and does not provide legal advice. Legal services are provided solely by an independent Florida law firm, which is not owned or controlled by Lixtara. You sign your own agreement with the firm and pay it directly. Lixtara receives no payment for referring you, and you are free to choose any attorney.